



File No.: EXP202306308

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 21/08/2024, and based on the following

FACTS

FIRST: On 21/08/2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202306308, whereby its first provision stated: "Declare the expiration of the procedure initiated against A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR." This resolution, which was notified to the appellant on ***DATE.1, in accordance with the provisions of Article 44 of the Common Administrative Procedure Law of Public Administrations (hereinafter, LPACAP), was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily under the aforementioned LPACAP, regarding the processing of sanctioning procedures.

SECOND: The appellant submitted on 18/10/2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally basing it on the following arguments:

- 1) It states that the resolution of the sanctioning file 202306308 was notified to it in the BOE on ***DATE.1, being the resolution for the archiving of the sanctioning procedure issued on 21/08/2024, agreeing to archive the file due to its expiration after the established time had elapsed without a resolution being issued.
- 2) It considers that the "alleged infringement-public disclosure-" occurred on ***DATE.2, having passed more than three years without the AEPD resolving within the legal deadline," therefore it considers that according to Article 30 of Law 40/2015, of 1/10, on the Legal Regime of the Public Sector (LRJSP hereinafter) the infringement has prescribed. "The video subject to the infringement was removed from my profile (...) on ***DATE.3." Given the time elapsed, it understands that the possible legal relevance of the case has ceased, as there is no risk of re-victimization towards the affected party, seeking to defend the victim from the actions of the Prosecutor. After this time, the infringement has ceased to have any relevant legal or social effect, "which invalidates the initial arguments of the AEPD."
- 3) It considers the proposed resolution issued on 04/06/2024 as arbitrary and disproportionate. Furthermore, it believes that the dismissal of the allegations presented against it is based on reasoning that does not correspond to reality.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/5

- 4) It indicates the extinction of revictimization, which must be weighed against the passage of time and the general principles of law, among which the principle of proportionality and reasonableness stands out.

5) Regarding the principle of proportionality, it states that when the passage of time mitigates or eliminates the harmful effects of a past action, maintaining a sanction or argument regarding revictimization may be disproportionate and unjust. In this regard, it reiterates that the video was removed more than two years after the start of the investigation by the AEPD. During that period, it has never been established that the victim has suffered new consequences or harmful effects resulting from the continued presence of the video in question, which nullifies the argument of revictimization by the AEPD. The AEPD cannot rely on the argument of revictimization when the facts have lost relevance, and doing so could violate the proportionality and reasonableness that must govern all administrative actions.

- 7) The damages and losses that may be considered relevant at the time they occur can lose their

validity or severity over time, “especially if measures are taken to correct or eliminate the source of the damage,” as was the case with the removal of the content.

8) It requests the annulment of the resolution that invokes revictimization as an argument, given the lack of legal and factual relevance.

9) It points out the erroneous interpretation of the voice as a revictimizing element, a legitimate exercise of freedom of expression, weighing the right to privacy against the right to free expression, as understood by the doctrine of the European Court of Human Rights (ECHR).

10) The appellant notes the need for voice expertise as an element of victim identification, without which, in their opinion, the guarantees of the sanctioning procedure would be violated.

11) It indicates the unlawfulness of prospective investigations, without a defined object that seeks to find any fact that may be considered an infringement or crime, as they would violate Article 24.2 of the Spanish Constitution. In their view, “the action of the AEPD seems to be configured as a prospective investigation as it is not based on a complaint directed against this party.”

12) It understands that “the Agency seems to have given undue precedence to the right to data protection, ignoring that the information disseminated has significant public interest, (...). This action by the AEPD therefore undermines the fundamental principles of weighing that protect the free exercise of the rights of expression and information.”

13) It considers that, “if the AEPD recognizes that there was no malicious intent in the conduct, there is no justification for imposing a sanction that should be based on the culpability of the offender.”

14) In their opinion, the Directive (EU) 2024/1069, relating to the protection of individuals participating in public life against manifestly unfounded claims and abusive legal proceedings (“strategic lawsuits against public participation”), has been violated.

3/5

public participation”) and Directive (EU) 2019/1937, regarding the protection of individuals who report breaches of Union law.

In the “request,” it is indicated that the expiration of the proceedings should be declared and, furthermore, the prescription of the procedure should commence from ***DATE.2 and the filing of the proceedings, since there has been no detriment, revictimization, or harm to the victim since the video was removed.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Among the general principles of administrative appeals under the LPACAP, Article 112 “general principles,” of section 1, states:

“1. Against resolutions and procedural acts, if the latter directly or indirectly decide the substance of the matter, determine the impossibility of continuing the procedure, produce defenselessness or irreparable harm to legitimate rights and interests, the interested parties may file appeals for reconsideration and optional appeals for review, which may be based on any of the grounds for nullity or annulment provided for in Articles 47 and 48 of this Law.

Opposition to other procedural acts may be raised by the interested parties for consideration in the resolution that concludes the procedure.”

Article 123 of the LPACAP indicates that “1. Administrative acts that conclude the administrative route may be optionally appealed for reconsideration before the same body that issued them or be directly challenged before the contentious-administrative jurisdiction.”

We must begin by indicating that the resolution against which the appeal for reconsideration is said to be filed declared the expiration of the procedure. Nevertheless, the appellant has not referred to any

aspect regarding the content of the resolution that is the subject of this appeal for reconsideration. Instead, they have made general allegations against the proposal or against the initiation agreement and considerations regarding a possible exemption from their future liability, in case they could be held liable, as they consider the facts that allegedly constituted the imputation of the infringement of the procedure whose expiration was declared to be time-barred.

The appeal is thus limited to expressing disagreements with the content of the initiation agreement or the proposal for resolution, some of which have already been expressed during the processing. On the other hand, it does not express any aspect of the resolution that decrees the expiration of the procedure.

In light of the above, it is worth recalling that all prior decisions adopted in the phases of processing the administrative procedure, distinct and prior to its final resolution, are considered procedural acts, and in this case, the proposal or the initiation agreement that precedes it are acts prepared during the processing of the sanctioning administrative procedure before the final resolution is issued.

Given that the contested resolution does not contemplate proven facts, nor does it adopt the proposal, limiting itself to the relationship of the facts, arguments raised in the appeal against content that is not part of the contested resolution cannot be accepted.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 21/08/2024, in file EXP202306308.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact in writing.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/5

addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. You must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

180-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es